



PLEASE EXECUTE CONTRACT AND RETURN SIGNED COPY WITH DEPOSIT. THANK YOU!

This AGREEMENT made and entered into this _____ day of _____ 20_____, by and between Thomas Sign & Awning Company, Inc. Represented by: Ross Williamson hereinafter called Seller, and Divya Mahalingaiah at iSmash of Everett, 607 SE Everett Mall Way, Everett, WA 98208 hereinafter called Buyer.

JOB SITE: iSmash
607 SE Everett Mall Way
Everett, WA 98208-
United States

WITNESSETH: In consideration of covenants agreements hereinafter contained, the parties agree as follows:
Seller will furnish, as per sketch No. 114249

Thomas Sign & Awning Company, Inc. will manufacture after permits are received, ship and arrange for install the signage listed below. We will secure permits and schedule the installation. Customer to provide: property site plan, legal description, actual site address, letter of authorization, notice of commencement (if applicable). A 60% deposit noted below and signed contract to be returned for manufacturing to commence. Final invoice to be paid upon completion of shipment and installation. Note: Actual permit fees, tax, & freight will be billed at cost on your final invoice.

Qty	Part Number	Description	Price	Line Total
1	ENGINEERING	ENGINEERING- Technical Drawings for Sign Package	\$350.00	\$350.00
1	FREIGHT	Freight - Includes Crate Cost	\$4,300.00	\$4,300.00
1	ISM-WS8X21	WS 8'-10" X 21'-5" (1) ALUMINUM w/ CL 7'-8" OAH X 19'-2" OAW, IL w/	\$18,280.00	\$18,280.00
1	OPINSTALL	Installation cost	\$6,074.00	\$6,074.00
1	PERMIT	PERMITS AT COST ON FINAL INVOICE	\$0.00	\$0.00
1	PERMIT ACQUISITION	Permit Acquisition - staff time to obtain permits, close out final inspection	\$1,042.00	\$1,042.00
1	REMOVAL	Removal	\$4,306.00	\$4,306.00
1	SURVEY	Survey	\$1,077.00	\$1,077.00
			SIGNAGE TOTAL	\$35,429.00
			EST. SALES TAX	\$0.00
			At Cost EST. FREIGHT	\$0.00
			TOTAL	\$35,429.00
			DEPOSIT (60%) DUE	\$21,257.40
			BALANCE AFTER DEPOSIT	\$14,171.60

DEPOSIT TERMS -: DEPOSIT, WITH BALANCE DUE UPON COMPLETION





TERMS AND CONDITIONS

1. Buyer shall furnish Seller with complete address and plot plan showing exact locations of signs for each job with legal description and parcel ID.

2. Customer shall be responsible for adequate electric service to sign area, electrical permit, and final electrical hookup.

3. Since abnormal submerged conditions, such as rock, stumps, gas lines, electric lines, sewer lines, hard pan, water or sand cave-ins, etc., cannot be foreseen, all hardship costs will be charged to the Buyer.

4. Seller reserves the right to modify or correct sign in any way necessary to conform with any changes in city, county, or state law regulations or orders and/or conditions beyond Seller's control at job site to insure proper installation.

5. Seller shall not be liable for any failure in performance resulting from labor troubles, fires, floods, windstorms, acts of God, war or other conditions or contingencies beyond its control.

6. If survey is done after contract is signed, survey conditions may impact and change final contract pricing.

7. In the event location is not in readiness for when sign manufacture is complete, then 90% of total contract shall be paid to Seller immediately

8. Sales tax, Freight, Crating, Engineering, and Permit(s), if required, shall be billed at cost on final invoice.

9. All pricing is in US dollars. Payment shall be made in US dollars. Bank transaction charges are to be paid or reimbursed by Buyer to Seller.

10. Title to sign is retained by Seller for security and will pass to Buyer when the entire contract price has been paid. Sign shall be regarded as tangible personal property. Sign shall remain therefore severable and cannot be claimed as property of the Buyer or existing property aggrandizement until the purchase price on the face of this agreement is paid in full. In the event of a breach of contract by the Buyer before erection of said sign, Buyer shall immediately pay Seller for costs incurred in labor and material to date.

11. This contract shall apply to and bind the heirs, executors, administrators, successors, and assigns of Buyer and shall inure to the benefit of the Seller, his successors and assigns.

12. INTEREST: Any payment amount not paid when due shall accrue interest at the highest legal rate of interest allowed by law.

13. ATTORNEY'S FEES AND COSTS: In any litigation arising out of this contract, the prevailing party shall be entitled to recover a reasonable attorney's fees and costs. The parties agree that the exclusive venue of any such action shall be Pinellas County, Florida.

(SELLER)

(BUYER)

by: Ross Williamson

(Sales Representative)

Approved this _____ day of _____ 20____

At THOMAS SIGN & AWNING COMPANY, INC.

By (SELLER) _____

Title: Sales Executive

ACCEPTED BY BUYER

This _____ day of _____ 20____

Company Name: _____

By (BUYER) _____

Title: _____

Contract pricing is only guaranteed within 30 days of issue date. After 30 days pricing is subject to change.

